City of Pembroke Pines, FL

City of Pembroke Pines
Charles F. Dodge City Center
601 City Center Way
Pembroke Pines, FL 33025

Meeting Minutes

Wednesday, March 15, 2023

6:30 PM

6:30 PM Regular Commission Meeting. ADD-1 added to the Consent Agenda, ADD-2 added to Commission Items, and republished.

Commission Chambers

City Commission

Frank C. Ortis, Mayor
Jay D. Schwartz, Vice Mayor
Thomas Good, Jr., Commissioner
Angelo Castillo, Commissioner
Iris A. Siple, Commissioner

6:30 PM REGULAR MEETING CALLED TO ORDER

ROLL CALL

Present 5 - Mayor Frank Ortis, Commissioner Jay D. Schwartz, Vice Mayor Iris A. Siple, Commissioner Thomas Good Jr., and Commissioner Angelo Castillo

Also present: City Manager Charles F. Dodge, City Attorney Samuel Goren, and City Clerk Marlene Graham.

PLEDGE OF ALLEGIANCE

Commissioner Siple led the Pledge of Allegiance.

PRESENTATIONS:

PRE-1 23-0170

PRESENTATION NO. 1: PRESENTATION TO THE CITY'S FINANCE DEPARTMENT OF THE GOVERNMENT FINANCE OFFICERS ASSOCIATION (GFOA) CERTIFICATE OF ACHIEVEMENT AWARD FOR EXCELLENCE IN FINANCIAL REPORTING FOR THE ANNUAL COMPREHENSIVE FINANCIAL REPORT FOR THE FISCAL YEAR ENDED SEPTEMBER 30, 2021.

THIS IS THE TWENTIETH (20th) CONSECUTIVE YEAR THAT THE CITY HAS EARNED THIS PRESTIGIOUS AWARD. THE CERTIFICATE OF ACHIEVEMENT IS THE HIGHEST FORM OF RECOGNITION IN GOVERNMENTAL ACCOUNTING AND FINANCIAL REPORTING, AND ITS ATTAINMENT REPRESENTS A SIGNIFICANT ACCOMPLISHMENT BY A GOVERNMENT AND ITS MANAGEMENT.

Mayor Ortis presented the 20th certificate of recognition from GFOA to Lisa Chong, Finance Director.

Ms. Chong thanked the Mayor, Commission, and her staff for the honor.

PRE-2 23-0174

PRESENTATION NO. 2: MAYOR ORTIS WILL PRESENT THE PRESIDENTIAL SERVICE AWARD TO PEMBROKE PINES CHARTER HIGH SCHOOL STUDENT, AAKASH SURESH, FOR HIS DEDICATED VOLUNTEER SERVICE TO JOSHUA'S HEART FOUNDATION

Mayor Ortis read the Presidential Letter from the White House and presented it along with the award and certificates to Aakash Suresh. Mayor Ortis also recognized Claudia McLean, Executive Director of the non-profit Joshua's Heart Foundation, Inc., and Aakash's parents.

Aakash Suresh, 11th Grade at the Pines Charter High School, thanked the Mayor, the Commission, his parents, and the board members of Joshua's Heart Foundation.

PRESENTATION #3

Mayor Ortis recognized Patricia Good for her leadership role as the Vice Chair of the Broward Metropolitan Planning Organization.

Ms. Good thanked the Mayor, the Commission, and her husband Commissioner Tom Good for recognizing her service on the Broward MPO and the Broward County School Board.

ANNOUNCEMENT OF ITEMS TO BE PULLED FROM AGENDA

City Clerk Graham declared no items pulled from the agenda.

ITEMS AT THE REQUEST OF THE PUBLIC

There were no items at the request of the public.

COMMISSION AUDITOR REPORT:

None.

APPEALS OF BOARD OF ADJUSTMENT DECISIONS:

None.

ANNOUNCEMENT OF BOARD AND COMMITTEE APPOINTMENTS

No board appointments announced.

CONSENT AGENDA:

1. **23-0004** MOTION TO APPROVE THE PURCHASE OF A TORO MULTI PRO 5800-G SPRAYER AND RELATED ACCESSORIES FROM HECTOR TURF UTILIZING PRICING ESTABLISHED BY THE CITY OF MESA, AZ AND NATIONAL IPA CONTRACT # 2017025 FOR A TOTAL AMOUNT NOT TO EXCEED $71,674.88, PURSUANT TO SECTION 35.18(C)(5) OF THE CITY'S CODE OF ORDINANCES.

A motion was made to approve on the Consent Agenda

2. **23-0159** MOTION TO APPROVE ENTERING INTO AN AGREEMENT BETWEEN THE CITY OF PEMBROKE PINES/SOUTHWEST FOCAL POINT SENIOR CENTER AND THE AREAWIDE COUNCIL ON AGING OF BROWARD COUNTY, INC. THE EMERGENCY HOME ENERGY ASSISTANCE PROGRAM (EHEAP) AGREEMENT JP023-10-2023 FOR THE PERIOD OF APRIL 1, 2023 TO SEPTEMBER 30, 2023 IN THE TOTAL AMOUNT OF $24,536.85.

A motion was made to approve on the Consent Agenda

3. **23-0161** MOTION TO APPROVE AN INTERLOCAL AGREEMENT BETWEEN THE CITY OF PEMBROKE PINES AND BROWARD COUNTY TO PROVIDE FOR A REGIONAL BIOSOLIDS STUDY TO DETERMINE OPTIONS FOR THE MANAGEMENT OF WASTEWATER BIOSOLIDS, AT A COST NOT-TO-EXCEED $2,901.50

A motion was made to approve on the Consent Agenda

4. **23-0166** MOTION TO APPROVE AN AGREEMENT WITH HYDRO CORP INC., TO PROVIDE MANAGEMENT SERVICES FOR THE CITY'S WATER SYSTEM CROSS CONNECTION CONTROL PROGRAM, UTILIZING PRICING ESTABLISHED BY THE CITY OF COOPER CITY RFP #

2018-4-UTL, IN AN ANNUAL AMOUNT NOT TO EXCEED $290,000, PURSUANT TO SECTION 35.18(C)(5) OF THE CITY'S CODE OF ORDINANCES.

A motion was made to approve on the Consent Agenda

5. **23-0175** MOTION TO APPROVE THE POLICE DEPARTMENT'S ONE YEAR RENEWAL OF ITS GRAYKEY FORENSIC SOFTWARE LICENSE IN THE AMOUNT NOT TO EXCEED $30,795 FROM THE GRAYSHIFT, LLC. CORPORATION, PURSUANT TO SECTIONS 35.18(C)(7)(H) AND 35.18(C)(7)(I).

A motion was made to approve on the Consent Agenda

6. **23-0171** MOTION TO AWARD IFB # TS-23-03 "NETMOTION RENEWAL FOR VARIOUS CITY DEPARTMENTS" TO THE MOST RESPONSIVE/RESPONSIBLE BIDDER, VCLOUD TECH INC., IN THE AMOUNT NOT TO EXCEED $51,656.25.

A motion was made to approve on the Consent Agenda

7. **23-0047** **MOTION TO APPROVE THE DEPARTMENT RECOMMENDATIONS FOR THE FOLLOWING ITEMS LISTED ON THE CONTRACTS DATABASE REPORT:**

(A) InfoSend, Inc. - Professional Utility Bill and Late Notice Printing and Mailing Services - Renewal

(B) Polydyne Inc. - Purchase of FBS C1685 and FBS C1282 Polymer - Renewal

A motion was made to approve Section (B) of Item #7 on the Consent Agenda

8. **23-0167** MOTION TO APPROVE REQUEST TO ADVERTISE SOLICITATION(S)

(A) PSUT-23-01 TAFT STREET FORCE MAIN CONDITION ASSESSMENT
(B) PSUT-23-02 CCNA EMERGENCY POWER SYSTEM REPLACEMENT AT THE WWTP
(C) RE-23-01 DRAINAGE IMPROVEMENTS AT SILVER LAKES PARK SOUTH

A motion was made to approve on the Consent Agenda

9. **23-0160** MOTION TO APPROVE THE INTERLOCAL AGREEMENT WITH BROWARD COUNTY FOR THE REESTABLISHMENT OF THE THREE-CENT ($0.03) LOCAL OPTION GAS TAX ON EVERY GALLON OF MOTOR FUEL SOLD IN BROWARD COUNTY, AND THE DIVISION AND DISTRIBUTION OF SAID TAX; AND PROVIDING FOR AN EFFECTIVE DATE.

A motion was made to approve on the Consent Agenda

10. **23-0176** MOTION TO APPROVE THE INTERLOCAL AGREEMENT WITH BROWARD COUNTY FOR THE REESTABLISHMENT OF THE ADDITIONAL ONE-CENT ($0.01) LOCAL OPTION GAS TAX (FIFTH CENT) ON EVERY GALLON OF MOTOR FUEL SOLD IN BROWARD COUNTY, AND THE DIVISION AND DISTRIBUTION OF SAID TAX; AND PROVIDING FOR AN EFFECTIVE DATE.

A motion was made to approve on the Consent Agenda

11. **23-0180** MOTION TO ACCEPT VARIOUS COVID-19 EMERGENCY RELIEF GRANT AWARDS FOR THE PEMBROKE PINES CHARTER SCHOOLS SYSTEM IN AN AMOUNT UP TO $1,559,858.06 FROM THE FLORIDA DEPARTMENT OF EDUCATION FOR SCHOOL YEAR 2022-2023.

A motion was made to approve on the Consent Agenda

12. **23-0132** MOTION TO APPROVE THE FINDINGS AND RECOMMENDATION OF THE EVALUATION COMMITTEE AND TO AWARD RFP # FN-22-02 “REBID OF ARMORED CAR SERVICES” TO GLOVAL, INC., FOR AN INITIAL THREE-YEAR PERIOD, AND FOR AN ESTIMATED ANNUAL AMOUNT OF $78,240 BASED ON THE CURRENT ESTIMATED NUMBER OF PICK-UPS.

A motion was made to approve on the Consent Agenda

13. **23-0177** MOTION TO APPROVE THE PURCHASE AND AGREEMENT FROM TPR EDUCATION, LLC., DBA, THE PRINCETON REVIEW, INC. FOR ACCESS TO ONLINE PROFESSIONAL TUTORING SERVICES FOR STUDENTS THAT ATTEND THE PEMBROKE PINES CHARTER SCHOOLS, IN AN AMOUNT NOT TO EXCEED $229,500, FOR THE 2022-2023 AND 2023-2024 SCHOOL YEARS, UTILIZING PRICING ESTABLISHED BY THE COUNTY OF FAIRFAX CONTRACT # 2000003364, PURSUANT TO SECTION 35.18(C)(5) OF THE CITY'S CODE OF ORDINANCES.

A motion was made to approve on the Consent Agenda

14. **23-0178** MOTION TO AWARD IFB # TS-23-02 "SOPHOS ANTIVIRUS RENEWAL FOR CHARTER SCHOOLS" TO THE MOST RESPONSIVE/RESPONSIBLE BIDDERS ZONES, LLC. IN THE AMOUNT NOT TO EXCEED $390,000, FOR A THREE YEAR PERIOD.

A motion was made to approve on the Consent Agenda

15. **23-0179** MOTION TO APPROVE THE PURCHASE AND AGREEMENT FROM DROBOTS COMPANY FOR A PROFESSIONAL SERVICES PACKAGE TO OPERATE THE 2023 DROBOTS STEM SUMMER LEARNING CAMP PROGRAM AT THE PEMBROKE PINES-FLORIDA STATE UNIVERSITY CHARTER ELEMENTARY SCHOOL, IN AN AMOUNT NOT TO EXCEED $89,600, PURSUANT TO SECTION 35.18(C) OF THE CITY'S CODE OF ORDINANCES.

A motion was made to approve on the Consent Agenda

16. **23-0189** MOTION TO APPROVE THE MINUTES OF THE REGULAR COMMISSION MEETING ON WEDNESDAY, MARCH 1, 2023.

A motion was made to approve on the Consent Agenda

ADD-1 **23-0164** MOTION TO ACCEPT THE INTERAGENCY AGREEMENT BETWEEN THE CITY OF PEMBROKE PINES AND THE PANAMA CITY BEACH POLICE DEPARTMENT FOR INFORMATION EXCHANGE AND USE OF LICENSE PLATE READER (LPR) EXTRACT FILES IN SUPPORT OF FLOCK SAFETY FIXED LPRs.

A motion was made to approve on the Consent Agenda

Approval of the Consent Agenda

A motion was made by Commissioner Castillo, seconded by Commissioner Siple, to approve Items 1,2, 3, 4, 5, 6, 7(B), 8, 9, 10, 11, 12, 13, 14, 15, 16 and ADD-1 on the Consent Agenda. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Commissioner Schwartz, Vice Mayor Siple, Commissioner Good Jr., and Commissioner Castillo

Nay 0

7(A) **23-0047** **MOTION TO APPROVE THE DEPARTMENT RECOMMENDATIONS FOR THE FOLLOWING ITEMS LISTED ON THE CONTRACTS DATABASE REPORT:**

(A) InfoSend, Inc. - Professional Utility Bill and Late Notice Printing and Mailing Services - Renewal

(B) Polydyne Inc. - Purchase of FBS C1685 and FBS C1282 Polymer - Renewal

A motion was made by Commissioner Castillo, seconded by Commissioner Siple, to defer Section (A) of Item 7 - "(A) InfoSend, Inc. - Professional Utility Bill and Late Notice Printing and Mailing Services - Renewal" - until more information is provided to justify the price increase. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Commissioner Schwartz, Vice Mayor Siple, Commissioner Good Jr., and Commissioner Castillo

Nay 0

PRIOR TO THE VOTE BEING TAKEN:

Commissioner Siple read Item 7(A) into the record by title and spoke on the item.

Vice Mayor Schwartz spoke on the item.

Michael Bailey, Utilities Director, referred the question of the cost increase to the Procurement Department. Mr. Bailey responded to the question of the Commission regarding the City's electronic billing system which could be utilized to send bills and late notices to customers with online accounts.

Jonathan Bonilla, Assistant Utilities Director, said that the updated agreement would cover anticipated mailing/postage costs. Commissioner Siple said she wanted to see a more definitive explanation about the projected costs.

City Manager Dodge responded to the questions of the Commission regarding the agreement which included the cost of the late billing notifications and mailing services.

City Attorney Goren clarified that notification to customers about billing services would be at the discretion of the Public Services Department.

QUASI JUDICIAL CONSENT AGENDA:

ORDINANCES AND RESOLUTIONS:

SECOND READING ORDINANCES:

17. 2023-01 MOTION TO ADOPT PROPOSED ORDINANCE 2023-01 ON SECOND AND FINAL READING

PROPOSED ORDINANCE 2023-01 IS AN ORDINANCE OF THE CITY OF PEMBROKE PINES, FLORIDA, MODIFYING THE PEMBROKE PINES CITY CENTER MIXED USE DEVELOPMENT ("MXD") DISTRICT DESIGN GUIDELINES FOR THE APPROXIMATE 162 ACRE PARCEL OF THE PEMBROKE PINES CITY CENTER PROPERTY GENERALLY LOCATED WEST OF PALM AVENUE, BETWEEN PINES BOULEVARD AND WASHINGTON STREET; BY AMENDING AND UPDATING THE PEMBROKE PINES CITY CENTER MXD DESIGN GUIDELINES TO CREATE A MEDICAL DISTRICT, PERMITTING AN ADDITIONAL 150 UNITS 80% OF WHICH ARE AGE RESTRICTED, REMOVAL OF CERTAIN USES, AND AMENDING THE EXISTING DESIGN GUIDELINES TO CONFORM TO THE REVISED LAND DEVELOPMENT CODE AS REFERENCED IN EXHIBIT "A" ATTACHED HERETO AND INCORPORATED HEREIN; PROVIDING FOR CODIFICATION; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE.

A motion was made by Commissioner Castillo, seconded by Commissioner Siple, to adopt Proposed Ordinance 2023-02. The motion carried by the following vote:

Aye 4 - Mayor Ortis, Commissioner Schwartz, Vice Mayor Siple, and Commissioner Castillo

Nay 1 - Commissioner Good Jr.

Enactment No: 2003

PRIOR TO THE VOTE BEING TAKEN:

City Attorney Goren read Proposed Ordinance 2023-01 into the record by title.

Mayor Ortis opened the public hearing.
No members of the public spoke on the item.

Mayor Ortis closed the public hearing.

Commissioner Good said he was not in support of the item because the project adds traffic to an already complicated situation on Palm Avenue. Commissioner Good asked for a correction of the scrivener's error in the minutes from the last meeting pertaining to the vote text. City Clerk to address the scrivener's error.

FIRST READING ORDINANCES:

18. **2023-02** MOTION TO PASS PROPOSED ORDINANCE 2023-02 ON FIRST READING.

PROPOSED ORDINANCE 2023-02 IS AN ORDINANCE OF THE CITY OF PEMBROKE PINES, FLORIDA AMENDING CHAPTER 32 OF THE CITY CODE ENTITLED “DEPARTMENTS, BOARDS, AND COMMISSIONS,” SECTION 32.192 ENTITLED “COMPOSITION AND QUOROM”; PROVIDING FOR ALTERNATE BOARD MEMBERS TO COUNT TOWARDS A QUORUM IRRESPECTIVE OF THE DISTRICT REPRESENTED BY THE ALTERNATE MEMBER; PROVIDING FOR CODIFICATION; PROVIDING FOR CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE.

SECOND AND FINAL READING IS SCHEDULED FOR TUESDAY, APRIL 4, 2023.

A motion was made by Commissioner Siple, seconded by Commissioner Good Jr., to pass Proposed Ordinance 2023-01 on First Reading. The motion carried by the following vote:

Aye 4 - Mayor Ortis, Vice Mayor Siple, Commissioner Good Jr., and Commissioner Castillo

Nay 1 - Commissioner Schwartz

Enactment No: 2004

PRIOR TO THE VOTE BEING TAKEN:

City Attorney Goren read Proposed Ordinance 2023-02 into the record by title.

Commissioner Siple and Commissioner Castillo spoke in support of the item.

Vice Mayor Schwartz spoke about the reason he was not in support of

the item. He said he would like to have a full board and names of applicants at the next meeting.

City Clerk Graham responded to the questions of the Commission with regards to the chart rotation as described in the proposed ordinance.

RESOLUTIONS:

REGULAR AGENDA:

19. 23-0123 DISCUSSION AND POSSIBLE ACTION TO AWARD IFB # TS-22-10 "LENOVO DESKTOPS RE-BID" TO PURCHASE 89 COMPUTERS FROM:

(A) DELL TECHNOLOGIES IN AN AMOUNT NOT TO EXCEED $89,857.55, UTILIZING EXEMPTION 35.39(D)(9)(C); **OR**

(B) Y&S TECHNOLOGIES IN AN AMOUNT NOT TO EXCEED $107,434.80.

A motion was made by Commissioner Siple, seconded by Commissioner Good Jr., to approve Item #19. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Commissioner Schwartz, Vice Mayor Siple, Commissioner Good Jr., and Commissioner Castillo

Nay 0

PRIOR TO THE VOTE BEING TAKEN:

City Attorney Goren read Item 19 into the record by title.

Commissioner Castillo and Vice Mayor Schwartz spoke on the item.

City Attorney Goren responded to the questions of the Commission regarding the reason for the item being placed under the regular agenda.

Matthew Kefford, Technology Services Director, responded about the challenges to fulfill orders once a bid contract has been awarded.

Mark Gomes, Procurement Director, addressed the Commission to explain why the item was placed on the Regular Agenda and not on the Consent section of the Agenda. He said one of the vendors (Yotta Techive) has stated that they can no longer provide the requested

products at their proposed pricing. As a result, the agenda item was updated to include the next lowest priced vendor, which confirmed that they can still honor their pricing.

REPORTS OF LEAGUE REPRESENTATIVES

REPORTS OF THE CITY MANAGER AND CITY ATTORNEY

A motion was made by Commissioner Castillo, seconded by Commissioner Siple, to approve the City Manager's recommendation to review and to try the Community Micro Transit Pilot Program. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Commissioner Schwartz, Vice Mayor Siple, Commissioner Good Jr., and Commissioner Castillo

Nay 0

City Manager Dodge discussed the possible implementation of the Micro Transit Pilot Program which provides additional transportation services to residents who live outside the normal Broward County transit routes. The City Manager sought direction from the City Commission to support the program in Pembroke Pines from Pembroke Road to Sheridan Street.

Commissioner Siple spoke on the item.

COMMISSION ITEMS:

20. 23-0188 VICE MAYOR SCHWARTZ - ITEM#1: DISCUSSION AND POSSIBLE ACTION TO DIRECT CITY ADMINISTRATION AND CITY ATTORNEY TO DRAFT AN AGREEMENT WITH MISSION UNITED WITH THE INTENTION OF THE CITY OF PEMBROKE PINES TO BE DESIGNATED A VETERAN FRIENDLY CITY. STELLA TOKAR, ON BEHALF OF MISSION UNITED, WILL PRESENT THE PILOT PROGRAM CONCEPT TO THE CITY COMMISSION AT TONIGHT'S MEETING.

A motion was made by Vice Mayor Schwartz, seconded by Commissioner Siple, to approve Item #20. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Commissioner Schwartz, Vice Mayor Siple, Commissioner Good Jr., and Commissioner Castillo

Nay 0

PRIOR TO THE VOTE BEING TAKEN:

Vice Mayor Schwartz read Item #20 into the record and spoke on the item.

Ms. Stella Tokar from the United Way of Broward County addressed the Commission. Via PowerPoint presentation Ms. Tokar discussed the ALICE Veterans Program for men and women, and Mission United.

Commissioner Castillo, Commissioner Siple, Commissioner Good, and Mayor Ortis spoke in support of the item.

ADD-2 23-0191

[ADD-2 ADDENDUM ITEM 2]: COMMISSIONER GOOD - ITEM #1: DISCUSSION AND POSSIBLE MOTION FOR THE MAYOR AND THE CITY COMMISSION TO PUBLICLY OPPOSE SENATE BILL 798, AND ITS COMPANION BILL, HB-975, (THE 'BILLS') RELATING TO SOLID WASTE MANAGEMENT SUCH THAT MUNICIPALITIES AND COUNTIES UNDER THE BILLS '…MAY NOT PROHIBIT OR UNREASONABLY RESTRAIN A PRIVATE ENTITY FROM PROVIDING RECYCLING OR SOLID WASTE MANAGEMENT SERVICES TO COMMERCIAL, INDUSTRIAL, OR MULTIFAMILY RESIDENTIAL PROPERTIES, INCLUDING CONDOMINIUMS WITHIN A MUNICIPALITY OR A COUNTY. FURTHER, THE BILLS WILL ALSO PREEMPTIVELY REGULATE FRANCHISE AND LICENSING FEES NOW LAWFULLY CHARGED BY LOCAL GOVERNMENTS AND IMPAIR OTHER CONTRACTUAL OBLIGATIONS BETWEEN LOCAL GOVERNMENTS AND FRANCHISE HOLDERS ON EXISTING CONTRACTS AND FUTURE CONTRACTS. GIVEN THE OPENING OF THE 2023 SESSION ON 3/7/2023, AND THE PENDENCY OF THE BILLS IN VARIOUS COMMITTEES, THE MOTION INCLUDES A 'DRAFT AND ADOPT' DIRECTIVE SUCH THAT THE CITY ATTORNEY WILL BE DIRECTED TO DRAFT A RESOLUTION FOR IMMEDIATE SUBMITTAL TO THE FL SENATE, FL HOUSE, THE GOVERNOR'S OFFICE, THE FL LEAGUE OF CITIES AND THE BROWARD LEAGUE OF CITIES, IF TONIGHT'S MOTION IS APPROVED.

A motion was made by Commissioner Good Jr., seconded by Commissioner Castillo, to approve Addendum item #2. The motion included a 'draft and adopt' directive such that the city attorney would be directed to draft a resolution for immediate submittal to the Florida Senate, Florida House, the

Governor's Office, the Florida League of Cities and the Broward League of Cities. The motion carried by the following vote:

Aye 5 - Mayor Ortis, Commissioner Schwartz, Vice Mayor Siple, Commissioner Good Jr., and Commissioner Castillo

Nay 0

PRIOR TO THE VOTE BEING TAKEN:

Commissioner Good read Item ADD-02 into the record by title and spoke on the reason for the request to oppose the bills.

Commissioner Castillo and Commissioner Siple spoke in support of the item as proposed.

City Attorney Goren addressed the Commission regarding the process to draft and adopt a resolution on the record upon approval of the direction from the City Commission.

AFTER THE VOTE WAS TAKEN:

City Attorney Goren clarified for the record that the resolution of opposition would be drafted, executed, and prepared to be submitted to the listed government entities as requested. The enactment number for the resolution was 3814 for the record.

2023-R-07 MOTION TO ADOPT PROPOSED RESOLUTION 2023-R-07.

PROPOSED RESOLUTION 2023-R-07 IS A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF PEMBROKE PINES, FLORIDA, OPPOSING FLORIDA SENATE BILL 798 AND FLORIDA HOUSE BILL 975, RELATING TO RECYLCLING AND SOLID WASTE MANAGEMENT; PREEMPTING LOCAL GOVERNMENT FROM DETERMINING THE FULL SCOPE OF SERVICES AND SERVICE AREAS INCLUDED WITHIN AGREEMENTS FOR RECYCLING AND WASTE MANAGEMENT SERVICES; RESTRICTING LOCAL GOVERNMENT'S AUTHORITY TO DETERMINE THE COST OF PERMITS OR LICENSES RELATED TO RECYLING AND WASTE MANAGEMENT SERVICES; PROHIBITING LOCAL GOVERNMENT FROM REQUIRING AN EXCLUSIVE FRANCHISE FEE FOR RECYCLING AND WASTE MANAGEMENT SERVICES; PROVIDING FOR TRANSMITTAL; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY AND PROVIDING FOR AN EFFECTIVE DATE.

Pursuant to Commission Item ADD-2, the City Attorney, as directed by vote action on Commissioner Good's commission item, drafted Proposed Resolution 2023-R-07 and adopted by City Commission: Enactment No. 3814.

Enactment No: 3814

NEW BUSINESS:

OLD BUSINESS:

ADJOURN - 8:00 P.M.

CITY OF PEMBROKE PINES

Marlene D. Graham, CMC
City Clerk